**BRENDAN NGWA NFORBI**
Plaintiff, In Pro Per
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NORTHERN DISTRICT OF CALIFORNIA

**UNITED STATES DISTRICT COURT**

**NORTHERN DISTRICT OF CALIFORNIA**

**BRENDAN NGWA NFORBI,**

Plaintiff,

v.

**DIANA CANDELARIA, in her individual capacity; and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity; and DOES 1 through 10, inclusive,**

Defendants.

Case No. 3:26-cv-08272-LJC
Hon. Lisa J. Cisneros

**FIRST AMENDED COMPLAINT FOR DAMAGES AND FOR DECLARATORY AND INJUNCTIVE RELIEF**

(42 U.S.C. § 1983; 28 U.S.C. *§§ 2201, 2202; Ex parte Young)*

(I) 14A -- PDD -- Denial of Impartial Adjudicator;
(II) 14A -- PDD -- Denial of Fair Hearing;
(III) Declaratory Relief;
(IV) Injunctive Relief.

*[DEMAND FOR JURY TRIAL]*

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, brings this First Amended Complaint against Defendants DIANA CANDELARIA, in her individual capacity, and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity, and alleges as follows:

## INTRODUCTION

1. This is a civil rights action for damages under 42 U.S.C. section 1983 against Defendant DIANA CANDELARIA, a Driver Safety Hearing Officer employed by the California

Department of Motor Vehicles ("DMV"), sued in her individual capacity; and for prospective declaratory and injunctive relief under *Ex parte Young*, 209 U.S. 123 (1908), against Defendant STEVE GORDON, Director of the California DMV, sued in his official capacity. Acting under color of state law, Defendant Candelaria deprived Plaintiff BRENDAN NGWA NFORBI of a constitutionally protected property interest -- his Class A Commercial Driver's License (No. F7953179) -- through an administrative-per-se proceeding that was constitutionally deficient in at least three independently sufficient ways, each traceable directly to Defendant Candelaria's own written decision.

2. The underlying facts are simple, documented, and largely undisputed. On November 1, 2024, Plaintiff -- a professional commercial truck driver -- was arrested by California Highway Patrol ("CHP") officers on the shoulder of Interstate 580 East in Livermore, Alameda County, California, on a suspicion of driving under the influence that the officers' own contemporaneous dashcam recording refutes. Four days later, on November 5, 2024, the CHP itself issued a formal Penal Code section 851.6 Detention Certificate reclassifying that taking-into-custody as "a detention only, not an arrest," and releasing Plaintiff under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." The Alameda County District Attorney, to whom charges had been referred, declined to file any accusatory pleading. The Detention Certificate and the District Attorney's declination constitute material contrary evidence bearing on the lawfulness of the arrest that Defendant Candelaria's written decision did not address.

3. Notwithstanding the Detention Certificate, the DMV proceeded with a Vehicle Code section 13353 administrative-per-se refusal-suspension hearing. That hearing took place on January 24, 2025, via Microsoft Teams, before Defendant Candelaria. On February 11, 2025, Candelaria issued a written Notification of Findings and Decision in APS Case No. 34739340 sustaining a one-year suspension of Plaintiff's Class A Commercial Driver's License (Feb. 20, 2025 through Feb. 19, 2026), imposing a $125.00 reissue fee under Vehicle Code sections 14904 and 14906, and imposing a three-year SR-22 financial-responsibility requirement under Vehicle

Code section 16430 that continues to burden Plaintiff to this day. Plaintiff's SR-22 filing became effective May 18, 2026; accordingly, the three-year maintenance period extends through approximately May 2029.

4. Candelaria's decision is constitutionally infirm on at least three independent grounds, each of which -- standing alone -- states a claim upon which relief can be granted:

(a) DENIAL OF AN IMPARTIAL ADJUDICATOR. Candelaria adjudicated Plaintiff's suspension within the DMV's hearing framework in which the same officer both develops the evidentiary record and renders the final decision. Whether that framework operates consistently with due process depends on whether the hearing officer conducts neutral fact development or crosses the line into advocacy -- a distinction three separate California Court of Appeal decisions had drawn before Plaintiff's hearing. The DMV's own written Notice of Hearing Appointment (Form DS 2304) describes the combined role verbatim: "The Hearing Officer will develop the facts and render a final decision on your matter." As alleged below, Candelaria's specific conduct at Plaintiff's hearing crossed the line from neutral fact development into advocacy for the Department's position.

(b) DENIAL OF A FAIR HEARING. Candelaria's written decision did not engage with the material evidence and controlling authority Plaintiff placed in the record. Presented with (i) the CHP's own section 851.6 Detention Certificate, (ii) the CHP dashcam recording in which the officers themselves identified the suspected "alcoholic beverage" as urine, and (iii) binding California Supreme Court authority in *Mercer v. DMV*, 53 Cal.3d 753 (1991), Candelaria issued a written decision that addressed none of them, treated the officer's sworn statement as dispositive, and characterized the record as one in which "no evidence was presented to the contrary" when in fact contrary evidence had been presented in writing and at the hearing.

(c) FAILURE TO EVALUATE THE LAWFUL-ARREST PREDICATE. The APS

refusal framework, operating through Vehicle Code section 23612(a)(1)(A), requires that the driver have been "lawfully arrested." Whether the arrest was lawful was a contested hearing issue: Plaintiff presented the section 851.6 Detention Certificate, the *Mercer* volitional-movement requirement, and the dashcam evidence -- each bearing directly on the lawfulness question. Candelaria's written decision did not address any of them.

5. Whether Candelaria's conduct at Plaintiff's hearing crossed the line from neutral fact development to advocacy is evaluated under the framework three published California Court of Appeal decisions articulated before the date of Plaintiff's hearing: *California DUI Lawyers Ass'n v. DMV*, 77 Cal.App.5th 517 (2022); *Knudsen v. DMV*, 101 Cal.App.5th 186 (2024); and *Clarke v. Gordon*, 104 Cal.App.5th 1267 (2024). *Clarke* names Defendant Gordon personally as the responsible official. Defendant Gordon has actual notice of the constitutional requirements; he has failed to ensure compliance; and the consequences of a decision issued in a hearing that did not comply continue to cause Plaintiff present, ongoing adverse effects -- including the ongoing SR-22 encumbrance and the ongoing commercial-driving-record consequences of the suspension -- that *Ex parte Young* empowers this Court to redress.

6. The consequences of Candelaria's decision have been -- and continue to be -- severe. Plaintiff is a professional Class A CDL truck driver. The one-year suspension of his commercial driving privileges immediately terminated his employment. The three-year SR-22 filing requirement continues to encumber him today; it is a punitive, high-risk financial-responsibility filing that would not exist absent Candelaria's decision, and on information and belief it has materially restricted the pool of carriers willing to insure Plaintiff and has prevented him from obtaining standard owners-coverage insurance on terms comparable to those available to drivers not subject to the mandate. Plaintiff currently maintains California Auto Insurance Policy No. 11411043872 (Dairyland / Viking Insurance Company of Wisconsin), a California Named Non-Owner SR-22 policy with an annual premium of $281.28, in force through May 18, 2027, solely because Candelaria's February 11, 2025 decision imposes the three-year mandate.

7. This action is brought against Candelaria in her individual capacity for damages, and against Gordon in his official capacity for prospective declaratory and injunctive relief under *Ex parte Young*. Quasi-judicial absolute immunity, on the functional analysis the Supreme Court and Ninth Circuit require, does not shield Candelaria from suit to the extent she performed conduct outside the protected adjudicatory function; such conduct is not immunized merely because it occurred in connection with a hearing. The Eleventh Amendment does not bar the *Ex parte Young* claims against Gordon -- Plaintiff pleads ongoing constitutional violations with continuing, present adverse effects, including the SR-22 encumbrance extending through approximately May 2029 and the continuing operation of the hearing framework that Gordon has been personally noticed of and has failed to reform.

8. A related civil-rights action, *Nforbi v. Meza-Gonzalez & Melano* (N.D. Cal.), is pending in this District against the CHP officers whose conduct on November 1, 2024 gave rise to the arrest. That action rests on the same dashcam recording and the same section 851.6 Detention Certificate that Defendant Candelaria's written decision did not address. The alias relationship between Plaintiff's name in this action and the caption in that related action is explained at paragraph 22, below.

9. Plaintiff respectfully seeks (a) compensatory and punitive damages against Defendant Candelaria; (b) attorney's fees and costs pursuant to 42 U.S.C. section 1988 to the extent recoverable; (c) a declaratory judgment against Defendant Gordon that the APS proceeding as applied to Plaintiff violated the Fourteenth Amendment; and (d) a prospective injunction against Defendant Gordon vacating Plaintiff's suspension, its associated financial-responsibility burdens, and requiring that any future APS hearing involving Plaintiff be conducted by a neutral decisionmaker who does not act as an advocate for the Department.

## JURISDICTION AND VENUE

10. This Court has original subject-matter jurisdiction over Plaintiff's federal claims under 28 U.S.C. section 1331 (federal question) and 28 U.S.C. section 1343(a)(3) and (a)(4) (civil rights), because those claims arise under the Fourteenth Amendment to the United States Constitution, as enforced through 42 U.S.C. section 1983, and seek declaratory and injunctive relief under 28 U.S.C. sections 2201 and 2202.

11. This Court has personal jurisdiction over each Defendant because each is a California state officer or employee performing official state functions within the State of California, and the conduct complained of occurred and continues to have effects within California.

12. Venue is proper in the Northern District of California under 28 U.S.C. section 1391(b)(2), because a substantial part of the events or omissions giving rise to Plaintiff's claims occurred in this District. Specifically: (a) the arrest that supplied the statutory predicate for the APS refusal-suspension hearing occurred on Interstate 580 East in Livermore, Alameda County, California, within this District; (b) the CHP's Penal Code section 851.6 Detention Certificate -- a document central to the due-process claims in this action -- was issued by the Dublin CHP Area (Alameda County), within this District; (c) the CHP dashcam recording, likewise, was created within this District; (d) the arresting officers whose sworn statements Candelaria ratified are stationed and reside within this District; and (e) the sworn CHP Arrest-Investigation Report and DS-367 Officer's Statement that Candelaria relied on originate from the CHP Dublin Area within this District. The evidentiary center of gravity of this action, insofar as it turns on the November 1, 2024 arrest and its statutory consequences, lies in this District.

13. INTRADISTRICT ASSIGNMENT. Under N.D. Cal. Civil Local Rule 3-2(c) and (d), this action arose in Alameda County and is therefore appropriately assigned to the San Francisco Division or the Oakland Division of this Court.

14. RELATED CASE. Pursuant to N.D. Cal. Civil Local Rule 3-12, Plaintiff will separately designate this action as related to *Nforbi v. Meza-Gonzalez & Melano* (N.D. Cal.), pending in this District against the CHP officers whose sworn statements Candelaria ratified. The two actions concern substantially the same transactions and events and present common questions of fact. This designation is made for purposes of case assignment under Local Rule 3-12, not as an independent basis for venue.

**PARTIES**

15. Plaintiff BRENDAN NGWA NFORBI is, and at all times relevant herein was, a natural person and a resident of the County of San Joaquin, State of California. Plaintiff is a professional commercial truck driver who, at all times prior to Defendant Candelaria's February 11, 2025 decision, held a valid California Class A Commercial Driver's License (No. F7953179), with endorsements for doubles/triples and tank vehicles.

16. Defendant DIANA CANDELARIA is, and at all times relevant herein was, employed by the California Department of Motor Vehicles as a Driver Safety Hearing Officer. Candelaria presided over Plaintiff's January 24, 2025 APS hearing (APS Case No. 34739340) and signed the February 11, 2025 written Notification of Findings and Decision. At all times relevant, Candelaria was acting under color of state law within the meaning of 42 U.S.C. section 1983 and within the course and scope of her employment as a DMV Driver Safety Hearing Officer. Candelaria is sued in her individual capacity only.

17. Defendant STEVE GORDON is, and at all times relevant herein was, the Director of the California Department of Motor Vehicles. As Director, Gordon is the state officer charged with administration and enforcement of the APS suspension scheme under Vehicle Code sections 13353 through 13389, with supervision of DMV Driver Safety Hearing Officers, and with the

promulgation and implementation of the procedures under which APS hearings are conducted. Gordon is sued in his official capacity only, and solely for prospective declaratory and injunctive relief under *Ex parte Young*, 209 U.S. 123 (1908).

18. On information and belief, and as more fully developed in the factual allegations below, Defendant Gordon has been personally noticed of the constitutional requirements governing the DMV's APS hearing framework -- most recently by his being named personally as respondent in *Clarke v. Gordon*, 104 Cal.App.5th 1267 (2024), decided approximately four months before Plaintiff's hearing -- and he has failed to institute corrective measures, training, or oversight adequate to prevent the recurrence of the advocacy-crossing conduct alleged in this case, causing continuing constitutional injury to Plaintiff and to similarly situated Class A CDL holders.

19. The true names and capacities, whether individual, corporate, associate, or otherwise, of Defendants DOES 1 through 10 are presently unknown to Plaintiff, despite reasonable investigation. On information and belief, each fictitiously named Defendant is a DMV Driver Safety Hearing Officer, supervisor, custodian of records, or other person who: (a) participated directly in the conduct of Plaintiff's APS proceeding; (b) approved, ratified, adopted, or acquiesced in the wrongful conduct alleged herein; or (c) knew of the wrongful conduct and failed to intervene or correct it. Each DOE Defendant is sued in his or her individual capacity for damages. Plaintiff will seek leave to amend to state the true names and capacities of the DOE Defendants when ascertained.

20. At all relevant times, each Defendant was acting under color of state law within the meaning of 42 U.S.C. section 1983.

## FACTUAL ALLEGATIONS

### A. Plaintiff's Class A CDL, Career, and Alias Note

21. At all times prior to the deprivation complained of in this action, Plaintiff held a valid California Class A Commercial Driver's License (No. F7953179), with endorsements for doubles/triples and tank vehicles. His CDL was his professional license and the property interest on which his livelihood as a commercial truck driver depended. He typically worked 11.5-hour shifts, five days per week, in the commercial trucking sector, earning wages of approximately $33.35 per hour for standard shifts and $50.03 per hour for premium/overtime shifts. Two days before the November 1, 2024 encounter, Plaintiff had secured new professional employment; the deprivation described below immediately terminated that employment and his ability to earn a living in his profession.

22. ALIAS NOTE. Plaintiff has, in prior court and administrative proceedings arising from the November 1, 2024 incident, appeared under the prior name variant "Brendan Ngehsi Newanforbi." That is the caption under which Plaintiff's related actions in this District and in the Eastern District of California were filed, the caption under which the DMV opened, adjudicated, and issued its written decision in APS Case No. 34739340, and the caption under which the California Highway Patrol issued the November 5, 2024 Penal Code section 851.6 Detention Certificate. "Brendan Ngehsi Newanforbi" and "Brendan Ngwa Nforbi" refer to the same individual -- the Plaintiff in this action -- and Plaintiff has since chosen to appear under "Brendan Ngwa Nforbi." Except where quoting from a prior filing, order, or record, this First Amended Complaint uses the name "Brendan Ngwa Nforbi" throughout.

**B. The November 1, 2024 Roadside Encounter**

**(Livermore, Alameda County, N.D. Cal.)**

23. On November 1, 2024, at approximately 12:54 a.m., Plaintiff was resting in a rented gray Tesla Model Y that he had lawfully parked on the right shoulder of Interstate 580 East, just west of Isabel Avenue, in Livermore, Alameda County, California. He was fatigued and had pulled off the roadway to rest -- exactly what federal Hours-of-Service rules and CHP's own public safety guidance instruct fatigued commercial drivers to do. He was not driving. He had not been observed by any officer in volitional movement of the vehicle. He had committed no observable Vehicle Code violation.

24. Two California Highway Patrol officers -- Officer Santiago Meza-Gonzalez (Badge #023295) and Officer Jose Melano (Badge #023054), both assigned to the CHP Dublin Area within this District -- approached Plaintiff's vehicle under the guise of a welfare check. In fact, and as documented in the officers' own dashcam recording of the encounter (CHP Case No. RJ68845; duration 00:54:36-01:57:10), the officers had formed a criminal-investigative hypothesis before any welfare observation had been made. At timestamp 00:56:09, before contacting Plaintiff and while Plaintiff was asleep, Officer Melano announced on the recording: "I think it's booze."

25. Officer Melano then opened the front passenger-side door of Plaintiff's vehicle without a warrant, without consent, and without any exigent circumstance. Between timestamps 00:58:49 and 00:59:07, Officer Melano seized a cup that had been visible from outside the vehicle, smelled it, and identified its contents on the recording in unmistakable terms: "Is it water? No this is piss. This is pee." And again, "I'm telling you it's piss. It smells like piss." The single articulable basis for the officers' investigation of Plaintiff for driving under the influence -- Officer Melano's pre-contact "I think it's booze" hypothesis -- had thus been contemporaneously dispelled by Officer Melano's own words captured on the officers' own recording.

26. Notwithstanding the dispelled predicate, the officers continued the encounter, prolonged the detention, ordered Plaintiff out of the vehicle onto uneven ground, put him through field-sobriety exercises Officer Melano himself acknowledged the ground was not suitable for, and -- after Plaintiff exercised his statutory right to decline a preliminary alcohol screening ("PAS") test that Officer Meza-Gonzalez expressly advised was voluntary ("You're not required to do this," timestamp 01:10:54) -- placed Plaintiff under arrest within eighteen seconds (timestamps 01:11:15-01:11:33). Plaintiff was transported to the CHP Dublin Area office where his blood was extracted under a warrant procured on the strength of the sworn statements described below, and thereafter booked at Santa Rita Jail in Dublin, Alameda County.

27. At no point in more than two hours of continuous dashcam audio does either officer verbalize any observation of an alcohol odor. Plaintiff is audibly captured on the recording speaking coherently and articulately -- spelling his surname on request, discussing the alternator design of the rental Tesla, explaining CDL fatigue protocols, and correctly identifying his location as Livermore -- without slurring, confusion, or disorientation.

**C. The Fabricated Sworn DS-367 and CHP Arrest-Investigation Report**

28. Following the arrest, Officer Meza-Gonzalez prepared, executed under penalty of perjury, and submitted (a) a DS-367 Age 21 and Older Officer's Statement (Cal. Veh. Code sections 13353, 13353.1, 13353.2, 13389) forwarded to the DMV as the statutory basis for administrative-per-se suspension proceedings; and (b) a CHP Arrest-Investigation Report, CHP Case No. RJ68845. Both documents were submitted to the reviewing magistrate as the affidavit supporting the search warrant for the involuntary blood draw, to the DMV as the officer's statement supporting the APS suspension, and to the Alameda County District Attorney for criminal referral.

29. Each document contains material representations conclusively disproven by the dashcam recording in the CHP's own custody:

(a) "Strong distinct odor of an alcoholic beverage." The DS-367 and arrest report state Meza-Gonzalez detected a "strong distinct odor of an alcoholic beverage" from Plaintiff's breath and person. Neither Meza-Gonzalez nor Melano ever verbalizes any observation of an alcohol odor at any point in the two-hour recording.

(b) "Slurred" speech. The DS-367 characterizes Plaintiff's speech as "slurred." The dashcam records Plaintiff, in extended coherent conversation, spelling his last name letter-by-letter on request and discussing mechanical details in fluent English.

(c) "Very confused and disoriented." The arrest report states that Plaintiff "seemed very confused and disoriented." The dashcam records Plaintiff correctly identifying his location and orienting himself to the encounter without difficulty.

(d) "Beverage Present: Yes." The DS-367 contains a checkbox entry indicating an alcoholic beverage was present. The only liquid the officers found and discussed on the recording was, in Officer Melano's own words, "piss" -- urine, not a beverage.

30. These four fabrications, and the material omissions that accompany them (including the officers' contemporaneous identification of the cup's contents as urine, the express advisement that the PAS was voluntary, and the fact that no observation of driving or volitional movement had been made), are the specific representations Defendant Candelaria adopted, ratified, and treated as effectively irrebuttable in her February 11, 2025 written decision, as more fully alleged below.

31. The related *Nforbi v. Meza-Gonzalez & Melano* action pending in this District pleads the officers' fabrications as violations of the Fourth and Fourteenth Amendments. Those officers' conduct is not the subject of this First Amended Complaint. It is relevant here only because Defendant Candelaria's February 11, 2025 decision rested on their sworn statement, and Candelaria's written decision did not independently evaluate that statement against the objective evidence contradicting it.

32. The evidentiary chain from CHP Case No. RJ68845 (Nov. 1, 2024) to APS Case No. 34739340 (Feb. 11, 2025) is direct: the DS-367 executed by Officer Meza-Gonzalez was the statutory triggering document that opened the APS proceeding, and the same DS-367 was the document Defendant Candelaria treated as dispositive in her written decision. There is no APS proceeding without the DS-367, and no ratification of the DS-367 without Candelaria's decision.

**D. The November 5, 2024 Penal Code Section 851.6 Detention Certificate**

33. On November 5, 2024 -- four days after the arrest -- the CHP Dublin Area issued a formal Detention Certificate under California Penal Code section 851.6, referencing CHP Case No. RJ68845. The Detention Certificate is signed by the releasing officer (Badge #022511) and states, in mandatory statutory language, that Plaintiff's taking into custody "was a detention only, not an arrest," and that Plaintiff was released pursuant to California Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint."

34. The Detention Certificate was in Plaintiff's possession before the January 24, 2025 APS hearing. Plaintiff placed it before Defendant Candelaria in the December 9, 2024 Notice of Response to Request for Discovery and again at the January 24, 2025 hearing itself. Defendant Candelaria did not, at the hearing or in her subsequent written decision, address the Detention Certificate on the merits.

35. The Detention Certificate is a formal, contemporaneous statement by the arresting agency itself that Plaintiff's taking into custody "was a detention only, not an arrest" and that "insufficient grounds" existed for making a criminal complaint. It is material contrary evidence bearing directly on the lawful-arrest issue -- a required element of the APS refusal-suspension framework -- that a neutral adjudicator, presented with it, should address in a written decision.

**E. The Statutory Framework: Vehicle Code Section 23612, the Implied Consent Law, and the Detention Certificate**

36. The consequences of a Penal Code section 849(b)(1) release, followed by a section 851.6 Detention Certificate, are non-discretionary and dispositive as a matter of California law:

(a) Penal Code section 849(c) provides: "Thereafter, the arrest shall not be deemed an arrest, but a detention only."

(b) Penal Code section 849.5 provides in materially identical terms for cases in which no accusatory pleading is filed: "the arrest shall not be deemed an arrest, but a detention only."

(c) Penal Code section 851.6(a) mandates that the releasing agency "shall issue to that person a certificate . . . describing the action as a detention."

37. The APS refusal-suspension framework operates through the implied consent provisions of Vehicle Code section 23612. Section 23612(a)(1)(A) provides that a person who drives a motor vehicle is deemed to have consented to chemical testing "if lawfully arrested for an offense allegedly committed in violation of Section 23140, 23152, or 23153." When a driver refuses the chemical test, Vehicle Code section 13353 authorizes a one-year suspension "upon receipt of the officer's sworn statement that the officer had reasonable cause to believe the person

had been driving a motor vehicle" in violation of the DUI statutes. Whether the arrest was lawful is a hearing issue at the APS proceeding. See *Mercer v. DMV*, 53 Cal.3d 753, 760-62 (1991); *Music v. Dep't of Motor Vehicles*, 221 Cal.App.3d 841, 850 (1990).

38. Plaintiff acknowledges that California courts have held that APS proceedings are largely independent of criminal case dispositions arising from the same arrest. *Behan v. Alexis*, 116 Cal.App.3d 403, 405-08 (1981) ("Once a lawful arrest, always a lawful arrest" for purposes of Vehicle Code section 13353); *Armondo v. Dep't of Motor Vehicles*, 15 Cal.App.4th 1174 (1993) (section 849(b) release does not automatically void an APS suspension). The question here is not whether the section 851.6 Detention Certificate retroactively erased the arrest for APS purposes. It did not. The question is whether the hearing officer who adjudicated the lawfulness of the arrest engaged in a constitutionally adequate evaluation of the evidence bearing on that issue -- including the Detention Certificate, the *Mercer* volitional-movement requirement, and the dashcam evidence -- or whether she treated the officer's sworn statement as dispositive without meaningful engagement with the contrary evidence Plaintiff placed in the record. As alleged in Count II below, she did the latter.

**F. The Alameda County District Attorney's Declination**

39. CHP referred charges to the Alameda County District Attorney under Vehicle Code sections 23152(a), 23152(b), and 23578. The Alameda County District Attorney, having reviewed the referral, declined to file any accusatory pleading of any kind against Plaintiff. No criminal case was ever initiated arising from the November 1, 2024 incident.

40. CHP has issued a section 851.6 Detention Certificate stating "insufficient grounds for making a criminal complaint," and the Alameda County District Attorney has declined to file any accusatory pleading. These facts constitute material contrary evidence that was before Defendant Candelaria at the time of the January 24, 2025 hearing. She sustained a one-year

commercial-driver license suspension anyway.

**G. The DMV APS Suspension Process and Plaintiff's Timely Written Defense**

41. On or about November 1, 2024, in connection with the arrest and refusal allegations, Officer Meza-Gonzalez served Plaintiff with a DS-367 Order of Suspension and Temporary License. Under Vehicle Code sections 13353 et seq., that document commenced automatic administrative-per-se suspension proceedings, subject to Plaintiff's right to request a hearing before a DMV Driver Safety Hearing Officer.

42. Plaintiff timely requested a hearing. On December 4, 2024, the DMV issued (a) a Request for Discovery (DS 2053); (b) a Notice of Stay (DS 2030) staying the section 13353 suspension effective December 1, 2024 pending hearing; (c) a Temporary License (DS 2030A) valid from December 1, 2024 "through the outcome of hearing" -- expressly restricting Plaintiff from "driving commercially"; and (d) a Notice of Hearing Appointment (Form DS 2304, Rev. 05/2023) setting the hearing for January 24, 2025 at 9:00 a.m. via Microsoft Teams before Defendant Candelaria (Meeting ID 241846391884; Conference ID 159660245).

43. The Temporary License's commercial-driving restriction imposed an immediate pre-adjudicative deprivation of Plaintiff's commercial-driving privilege regardless of hearing outcome -- itself a constitutionally significant burden that intensified the need for a full, fair, and neutral post-deprivation hearing.

44. The DMV's own Notice of Hearing Appointment (Form DS 2304) confirms, in writing, the combined role central to Count I of this First Amended Complaint. The document states, verbatim: "The Hearing Officer will develop the facts and render a final decision on your matter." That single sentence describes a framework in which the hearing officer both develops

the evidentiary record and renders the decision. Whether that framework operates consistently with due process depends on whether the hearing officer conducts neutral fact development or crosses the line into advocacy -- a distinction three separate California Court of Appeal decisions had drawn by the time Plaintiff received this form.

45. On December 9, 2024, Plaintiff timely submitted to the DMV a formal "Notice of Response to Request for Discovery -- Personal Statement," a five-page statement of facts and defense. That statement identified the CHP dashcam evidence, the fabrications in the DS-367, the Detention Certificate, and the exculpatory facts on the officers' own recording. It cited, among other binding authorities: *Mercer v. DMV*, 53 Cal.3d 753 (1991); *People v. Torres*, 173 Cal.App.4th 977 (2009); *Wong Sun v. United States*, 371 U.S. 471 (1963); *People v. Medina*, 6 Cal.3d 484 (1972); *McDonnell v. DMV*, 45 Cal.App.3d 653 (1975); *Terry v. Ohio*, 392 U.S. 1 (1968); *Florida v. Royer*, 460 U.S. 491 (1983); *Brown v. Texas*, 443 U.S. 47 (1979); and *Brown v. Illinois*, 422 U.S. 590 (1975). The DMV was on written notice of Plaintiff's constitutional and statutory defenses more than six weeks before the hearing.

46. Plaintiff also authenticated and offered into the DMV administrative record the November 5, 2024 Penal Code section 851.6 Detention Certificate; the CHP dashcam recording and a written transcript of the material portions of it; and identifying documentation of the arresting officers.

47. As of the January 24, 2025 hearing, Defendant Candelaria had before her: the DS-367; the CHP Arrest-Investigation Report; Plaintiff's timely written Notice of Response citing controlling authority; the section 851.6 Detention Certificate; the dashcam audio evidence; and Plaintiff's demeanor and testimony at the hearing. The state of the record placed the constitutional and statutory defects in the DMV's case in unmistakable relief. Candelaria proceeded to sustain the suspension anyway.

**H. The January 24, 2025 APS Hearing Before Defendant Candelaria**

48. On January 24, 2025, at 9:00 a.m., Defendant Candelaria presided over Plaintiff's APS hearing via Microsoft Teams. Plaintiff appeared and offered testimony under penalty of perjury. Plaintiff presented the Detention Certificate, referenced the dashcam evidence, and argued the controlling authority identified in his December 9, 2024 Notice of Response.

49. In the ordinary course of an APS refusal hearing before a neutral adjudicator, one would expect the trier of fact to (i) engage with the statutory predicate of "lawful arrest" as an initial matter; (ii) rule, on the record, on the effect of the Detention Certificate and the mandatory statutory language of Penal Code sections 849(c), 849.5, and 851.6(a); (iii) address the *Mercer* requirement of observed volitional movement in light of the officers' own testimony that Plaintiff was parked and asleep when they arrived; (iv) weigh the objective dashcam evidence against the sworn DS-367; and (v) address, at least briefly, the three California Court of Appeal decisions the driver had put in front of her regarding the framework in which she was operating.

50. Defendant Candelaria did none of those things. She proceeded through the hearing operating simultaneously as the DMV's evidence-gatherer, the DMV's advocate for admission of its documents, the ruling authority on Plaintiff's objections, and the ultimate trier of fact -- conduct that crossed the line from neutral fact development into advocacy for the Department's position, as specifically described in *California DUI Lawyers Ass'n*, *Knudsen*, and *Clarke v. Gordon*.

51. The record of the hearing, its administrative transcript, and the DMV's written decision are and will remain the evidentiary basis for evaluating Defendant Candelaria's conduct. Plaintiff reserves the right to develop this record in discovery, including through the hearing transcript, DMV internal training materials, and inquiry into Candelaria's other APS decisions.

**I. The February 11, 2025 Written Decision**

52. On February 11, 2025, Defendant Candelaria issued a written Notification of Findings and Decision in APS Case No. 34739340. The decision is captioned "ADMINISTRATIVE PER SE - .08% BAC Refusal." It is signed by Defendant Candelaria as "Driver Safety Hearing Officer." The decision was mailed to Plaintiff at 1455 Cat Tail Drive, Stockton, California 95204.

53. The decision sustains a one-year suspension of Plaintiff's Class A Commercial Driver's License, effective February 20, 2025 through February 19, 2026, and imposes: (a) a $125.00 reissue fee under Vehicle Code sections 14904 and 14906; and (b) a three-year proof-of-financial-responsibility (SR-22) mandate under Vehicle Code section 16430. Page 3 of the decision, immediately below the heading "DECISION" and Candelaria's signature, states verbatim: "A $125.00 reissue fee must be paid to DMV §§14904 and 14906 VC."; "You must file proof of financial responsibility as provided in §16430 VC."; and "You must maintain proof of financial responsibility for three years."

54. Candelaria's signed decision requires Plaintiff to maintain proof of financial responsibility for three years. Plaintiff filed the required SR-22 effective May 18, 2026 in connection with restoration of his driving privilege. Accordingly, Plaintiff alleges that the current three-year maintenance requirement extends through approximately May 18, 2029. Its continuing operation is a present, ongoing consequence of Candelaria's February 11, 2025 written decision -- not a discretionary insurance choice by Plaintiff, and not equivalent to the general "proof of financial responsibility" required of every California driver under Vehicle Code section 16020. See paragraphs 82-87, below.

55. The decision is conclusory. It does not mention the section 851.6 Detention Certificate. It does not mention Penal Code section 849(b)(1), 849(c), 849.5, or 851.6(a). It does

not analyze the *Mercer v. DMV* requirement of observed volitional movement. It does not address the material inconsistencies between the DS-367 and the CHP dashcam recording. It does not identify or apply any of the three California Court of Appeal decisions Plaintiff had placed before her. It states, in words directly contradicted by the record, that "no evidence was presented to the contrary" when in fact contrary evidence had been presented in writing (Plaintiff's December 9, 2024 Notice of Response, the Detention Certificate, and the dashcam transcript) and at the hearing itself.

**J. The Written Decision's Treatment of the Detention Certificate**

56. The section 851.6 Detention Certificate is not a peripheral document. It is the arresting agency's own written reclassification of the event as a detention rather than an arrest. It bears directly on the lawful-arrest issue that is a required element of the APS refusal-suspension framework. It is material contrary evidence that a neutral adjudicator, presented with it, should address in a written decision.

57. Defendant Candelaria was on written notice of the Detention Certificate before the hearing (via Plaintiff's December 9, 2024 Notice of Response) and again at the hearing itself. Candelaria's written decision does not mention the Detention Certificate. Whether that omission reflects a deliberate choice or a procedural failure, the result is the same: the written decision does not reflect the reasoned engagement with material evidence that due process requires. *Goldberg v. Kelly*, 397 U.S. 254, 271 (1970).

58. Candelaria's written decision also did not address the statutory provisions governing the effect of the Detention Certificate. Penal Code sections 849(c) and 849.5 provide that, following a section 849(b)(1) release and issuance of a Detention Certificate, the event is not deemed an arrest. Those provisions are relevant to the lawful-arrest hearing issue and were raised

by Plaintiff in his December 9, 2024 submission. The written decision does not discuss them.

**K. The Written Decision's Treatment of Mercer and the Volitional-Movement Requirement**

59. *Mercer v. DMV*, 53 Cal.3d 753 (1991), is the California Supreme Court's controlling decision on the arrest-predicate for section 13353 APS suspensions. *Mercer* establishes the observed-volitional-movement requirement where no statutory exception to the misdemeanor-presence rule applies. Id. at 760-62. Vehicle Code section 40300.5 creates specified exceptions to the misdemeanor-presence rule, authorizing warrantless arrest when one of five conditions is met: the suspect was involved in a traffic accident, could obstruct the roadway, would not otherwise be apprehended, may cause injury or property damage, or may destroy or conceal evidence.

60. On the officers' own account, and as reflected on the dashcam recording, Plaintiff was parked and asleep when the officers first approached. No officer observed Plaintiff in volitional movement of the vehicle.

61. Defendant Candelaria's written decision does not mention *Mercer*. It does not identify any section 40300.5 subsection as the basis for the arrest. It does not determine whether the factual prerequisites of any section 40300.5 exception existed. It does not otherwise explain the legal basis on which Plaintiff's warrantless arrest was lawful notwithstanding the absence of officer-observed driving. Whether the arrest was lawful is a hearing issue; Candelaria's written decision does not address it.

**L. Candelaria's Ratification of the Fabricated DS-367**

62. Defendant Candelaria's written decision treats the sworn DS-367 executed by Officer Meza-Gonzalez as the dispositive documentary basis for the suspension. Candelaria did not conduct any independent evaluation of the DS-367 against the objective dashcam evidence contradicting it; she did not resolve the material conflict; and she did not, in her written decision, address any of the specific representations in the DS-367 whose truth was in issue.

63. Candelaria's approach treated the officer's sworn statement as effectively dispositive regardless of what contrary evidence the driver presented. Rather than engage with the objective dashcam evidence contradicting the DS-367, Candelaria adopted the officer's account and issued a written decision stating that "no evidence was presented to the contrary" -- when, in fact, specifically identified contrary evidence had been presented in writing and at the hearing.

64. Due process requires a decisionmaker to state the reasons for the determination and indicate the evidence relied upon; procedures that eliminate meaningful factual inquiry violate due process where the private interest is substantial. *Goldberg v. Kelly*, 397 U.S. 254, 271 (1970); *Mathews v. Eldridge*, 424 U.S. 319, 344-45 (1976). Candelaria's failure to engage with the material contradictions between the DS-367 and the dashcam recording is alleged as a failure of reasoned engagement, not as an exercise of permissible evidentiary discretion.

**M. Candelaria's Conduct as Prosecutor and Adjudicator; The DMV's Own Written Description**

65. Defendant Candelaria's conduct of the January 24, 2025 hearing exemplified conduct that crossed the line from neutral fact development into advocacy. Candelaria: (a) developed and marshaled the evidentiary record on behalf of the DMV; (b) identified, offered, and admitted the DMV's documentary exhibits; (c) ruled on Plaintiff's objections to the DMV's exhibits and to the

DMV's positions; (d) evaluated Plaintiff's testimony and evidence; and (e) issued the ultimate ruling on the merits. Those functions, undertaken by a single officer within a single proceeding without a separate advocate, merged the roles of prosecuting advocate and trier of fact within the same official.

66. The combined role is not merely an inference from Candelaria's conduct at the hearing. It is described in the DMV's own Notice of Hearing Appointment (Form DS 2304, Rev. 05/2023), served on Plaintiff before the hearing. That form states, verbatim: "The Hearing Officer will develop the facts and render a final decision on your matter." "Developing facts" describes conduct that may be neutral evidence development or may cross the line into advocacy, depending on how it is performed; "rendering a final decision" is adjudicative conduct. The form language is relevant context for evaluating whether Candelaria's specific conduct at the hearing crossed from neutral fact development into advocacy.

67. The disclaimer that follows in the same DMV form -- to the effect that the hearing officer "does not advocate on behalf of the Department" -- is contradicted by the operational reality of the hearing as alleged above. Whether the disclaimer is accurate as applied to Plaintiff's hearing is a factual question that cannot be resolved at the pleading stage.

**N. Three California Appellate Decisions on the DMV Hearing-Officer Framework Before Plaintiff's Hearing**

68. By the date of Plaintiff's January 24, 2025 hearing, three separate published California Court of Appeal decisions had addressed the due-process requirements governing the DMV's APS hearing-officer framework:

(a) *California DUI Lawyers Ass'n v. DMV*, 77 Cal.App.5th 517 (2022), decided April 15, 2022 -- more than 33 months before Plaintiff's hearing -- held that the DMV's practice of

appointing hearing officers who act simultaneously as advocates for the Department and as decisionmakers on the Department's own case violates due process.

(b) *Knudsen v. DMV*, 101 Cal.App.5th 186 (2024), decided April 4, 2024 -- more than nine months before Plaintiff's hearing -- reaffirmed and elaborated the constitutional requirements, and articulated the case-by-case analytic framework for determining whether the hearing officer's conduct crossed the line from neutral fact development into advocacy in a particular hearing.

(c) *Clarke v. Gordon*, 104 Cal.App.5th 1267 (2024), decided September 12, 2024 -- approximately four months before Plaintiff's hearing -- again addressed the framework, and named Defendant Gordon personally as respondent.

69. The three decisions are cumulative, mutually reinforcing, and controlling on California courts. Their combined force placed the DMV -- and Defendant Gordon personally -- on unambiguous notice of the due-process requirements governing the hearing-officer framework. See *Clarke*, 104 Cal.App.5th at 1277 (hearing officer performed dual roles where he "marshalled, identified, and offered into evidence the DMV's exhibits . . . overruled Clarke's objections . . . [and] rigorously cross-examined Clarke"). Defendant Candelaria's alleged conduct at Plaintiff's hearing is substantially analogous in relevant respects: marshaling and offering exhibits, overruling objections, and issuing a decision that adopted the officer's account without engaging with material contrary evidence.

70. Federal courts applying California law follow the California appellate decisions on the hearing-officer framework, and the underlying due-process principles are federal in origin. *Withrow v. Larkin*, 421 U.S. 35, 46-47 (1975) (combination of investigative and adjudicative functions poses risk of bias sufficient to trigger due process scrutiny).

**O. Post-CDLA Reforms and Candelaria's Non-Compliance at Plaintiff's Hearing**

71. Following the *California DUI Lawyers Association* decision in 2022, the DMV implemented procedural reforms intended to address the hearing-officer framework the Court of Appeal had found constitutionally deficient. These included, at various points, the use of two-employee hearing panels, regulatory revisions submitted through the Office of Administrative Law, and revised hearing-officer training materials. Plaintiff acknowledges that these reforms exist.

72. The question in this case is not whether the DMV adopted reforms in principle. It is whether Defendant Candelaria complied with them in practice at Plaintiff's January 24, 2025 hearing. The *Knudsen* court recognized that the analysis 'will necessarily depend on the unique facts of each hearing.' 101 Cal.App.5th at 207. Here, the specific facts of Plaintiff's hearing -- as alleged in paragraphs 48-55 above -- establish that Candelaria crossed the line from neutral evidence development to advocacy: she marshaled evidence on the DMV's behalf, offered and admitted the DMV's exhibits, overruled Plaintiff's objections, and issued a written decision that adopted the officer's sworn statement without engaging with the material contrary evidence Plaintiff had placed in the record.

73. This is not a case where a hearing officer neutrally received pre-existing documents and weighed them against the driver's evidence. This is a case where the hearing officer functioned as the DMV's advocate in a proceeding with no separate advocate, and then rendered a decision reflecting that advocacy rather than neutral adjudication. The post-CDLA reforms do not shield Candelaria from liability for conduct that violated them.

**P. Clarke v. Gordon: Personal Notice to Defendant Gordon**

74. Defendant Gordon was named personally, in his official capacity, as the respondent in *Clarke v. Gordon*, 104 Cal.App.5th 1267 (2024). Gordon received individualized notice of the constitutional requirements governing the DMV's hearing-officer framework as a matter of published appellate record. The decision was and remains binding on California courts and directly implicates the DMV's operational practice.

75. Following *Clarke* and the preceding decisions, the DMV adopted certain procedural reforms. Plaintiff acknowledges those reforms exist. The question is whether they were adequate in practice to prevent the advocacy-crossing conduct alleged in this case. As alleged in paragraphs 71-73, Candelaria's specific conduct at Plaintiff's January 24, 2025 hearing crossed the line from neutral evidence development to advocacy notwithstanding the reforms. Gordon presently continues to enforce the consequences of a decision issued in that hearing.

**Q. Defendant Gordon's Ongoing Failure to Ensure Compliance with Due Process Requirements**

76. As Director of the California DMV, Defendant Gordon is charged with the administration and enforcement of the APS suspension scheme (Cal. Veh. Code sections 13353-13389); with supervision of DMV Driver Safety Hearing Officers; and with the promulgation, revision, and implementation of the procedures under which APS hearings are conducted, including Form DS 2304 and its written statement of the hearing officer's role.

77. On information and belief, Defendant Gordon has been on actual notice of the constitutional requirements governing the hearing-officer framework since at least April 2022 ( *California DUI Lawyers Ass'n*) and, in individualized form, since at least September 2024 ( *Clarke v. Gordon*). Gordon has not ensured that the adopted reforms were implemented with

sufficient rigor to prevent the advocacy-crossing conduct alleged in this case. On information and belief, Candelaria's conduct at Plaintiff's January 24, 2025 hearing -- marshaling evidence, offering exhibits, ruling on objections, and deciding the merits without a separate advocate -- occurred under Gordon's supervisory authority and within the framework Gordon administers.

78. Defendant Gordon, as the responsible state officer, continues to enforce the suspension consequences that flowed from Candelaria's hearing. It causes continuing, present adverse effects to Plaintiff (see paragraphs 79-87, below) that are traceable to Gordon's decision-making authority and redressable by prospective declaratory and injunctive relief under *Ex parte Young*.

**R. The Consequences: CDL Suspension, Career Devastation, and the Ongoing SR-22 Encumbrance**

79. The commercial-driving restriction imposed by the December 2024 Temporary License (see paragraph 43, above), and confirmed by Defendant Candelaria's February 11, 2025 decision sustaining the full one-year suspension, terminated Plaintiff's employment as a Class A CDL truck driver. Plaintiff had, two days before the November 1, 2024 encounter, secured a new professional employment position. That position was extinguished. The sustained suspension barred Plaintiff from earning his living in his profession for the full one-year period (February 20, 2025 through February 19, 2026).

80. Plaintiff's economic damages causally traceable to the challenged decision are concrete and documented:

(a) Direct suspension-period earnings loss. At the time the suspension took effect (February 20, 2025), Plaintiff held a Class A CDL and had been employed as a commercial truck driver at a regular rate of $33.35 per hour and a premium/overtime rate of $50.03 per hour, as reflected in the contemporaneous Centerline wage notice dated October 31, 2024. Using a

conservative schedule of forty regular hours and twenty overtime hours per week -- consistent with dedicated regional truck driving work -- Plaintiff's direct lost earnings during the one-year suspension period (February 20, 2025 through February 19, 2026) exceed $121,000.

(b) Post-suspension consequential earning loss. Even after the formal suspension period ended on February 19, 2026, the APS suspension event remains on Plaintiff's commercial-driving record and functions as a lookback item that materially affects his employability with commercial motor carriers and the terms on which such carriers will offer employment. On information and belief, this record consequence has caused and continues to cause Plaintiff continuing impairment of earning capacity beyond the formal suspension period.

(c) Out-of-pocket expenses, including the $125.00 reissue fee under Cal. Veh. Code sections 14904 and 14906, SR-22 premiums of $281.28 per year, alternative transportation, and administrative expenses.

(d) Damages for emotional distress, humiliation, mental anguish, and reputational injury caused by the arbitrary destruction of Plaintiff's livelihood and professional reputation. *Carey v. Piphus*, 435 U.S. 247, 264-65 (1978).

81. The total economic damages causally traceable to the challenged decision -- including direct suspension-period lost wages, post-suspension consequential earning impairment, and out-of-pocket expenses -- exceed $200,000, excluding emotional distress and punitive damages to be proven at trial.

**S. The Ongoing SR-22 Financial-Responsibility Encumbrance**

82. The three-year SR-22 filing requirement Defendant Candelaria imposed in her February 11, 2025 decision is a present, continuing, and quantifiable consequence of that

decision. The requirement obligates Plaintiff to maintain proof of financial responsibility as defined in Vehicle Code section 16430 as a condition associated with reinstatement following the challenged APS suspension.

83. The SR-22 requirement is not equivalent to the general "proof of financial responsibility" required of every California driver under Cal. Veh. Code section 16020. Section 16020 is a general insurance requirement enforced through a policy or equivalent evidence of coverage; it does not require any special filing with the DMV. An SR-22 certificate filed under section 16430, by contrast, is a high-risk filing that (i) is required only as a consequence of specified adverse administrative actions; (ii) is filed by the insurer directly with the DMV; (iii) requires the insurer to notify the DMV upon lapse or cancellation; (iv) makes the insured a high-risk customer subject to substantially higher premiums; and (v) restricts the pool of carriers willing to write the policy. The SR-22 is a punitive encumbrance flowing directly from the challenged administrative action, not a generic insurance obligation.

84. Plaintiff has, at all times since the imposition of the SR-22 mandate, complied with it. Plaintiff currently maintains California Auto Insurance Policy No. 11411043872 (Dairyland / Viking Insurance Company of Wisconsin), effective May 18, 2026 through May 18, 2027, with an annual term premium of $281.28. The policy is a California Named Non-Owner Policy. Its Declarations page expressly provides: "A Named Non-Owner Policy provides the selected coverage for the Named Insured while driving non-owned cars. Coverage does not apply when driving a non-owned car available for regular use by the Named Insured."

85. The Named Non-Owner structure of Plaintiff's current policy is what is available to him as a driver subject to the SR-22 mandate imposed by Defendant Candelaria's decision. On information and belief, the SR-22 mandate has materially restricted the pool of carriers willing to insure Plaintiff and has prevented him from obtaining standard owners-coverage insurance on terms comparable to those available to drivers not subject to the mandate.

86. Candelaria's decision requires three years of maintained proof of financial responsibility. Because Plaintiff's SR-22 filing became effective May 18, 2026, the three-year maintenance period extends through approximately May 2029. Plaintiff will remain subject to that encumbrance -- and to premiums, coverage limitations, and administrative burdens flowing from it -- for as long as the challenged decision continues to encumber his DMV record and until the three-year filing period lapses. That continuing burden is a present adverse effect for *Ex parte Young* standing purposes, redressable by the prospective relief requested against Defendant Gordon.

87. In addition to the SR-22 mandate, Plaintiff continues to be subject to the reissue conditions imposed by the decision, the collateral consequences of the suspension event on his commercial-driving record, and the risk that any future APS proceeding involving Plaintiff would be adjudicated under a framework that does not comply with due-process requirements absent Gordon's implementation of adequate reform. Each of these is a distinct continuing, present adverse effect for *Ex parte Young* standing purposes.

**T. Related Actions and Prior Proceedings**

88. The related action designated in paragraph 14, *Nforbi v. Meza-Gonzalez & Melano* (N.D. Cal.), is pending in this District against the CHP officers whose sworn statements Candelaria relied on. That action does not assert any claim against Defendant Candelaria or Defendant Gordon. A prior action arising from the same November 1, 2024 incident, filed in the Eastern District of California, has been voluntarily dismissed without prejudice. This action is not duplicative of any pending proceeding.

**U. Damages Summary and Continuing Injury**

89. Plaintiff repeats and re-alleges paragraphs 79-87 above, and further alleges that, as a direct and proximate result of Defendant Candelaria's decision, Plaintiff has suffered and continues to suffer: (a) loss of his commercial-driving privilege and the professional employment that depended on it; (b) lost wages and lost earning capacity; (c) out-of-pocket expenses, including the SR-22 premiums Plaintiff has paid and will continue to pay; (d) reputational injury and continuing commercial-record consequences; (e) emotional distress, humiliation, and mental anguish; and (f) the ongoing economic and professional impact of the collateral consequences flowing from the challenged suspension decision.

90. As a direct and proximate result of Defendant Gordon's failure to ensure compliance with due-process requirements, Plaintiff continues to suffer (a) the SR-22 encumbrance imposed under a decision issued in a constitutionally infirm proceeding; (b) the continuing commercial-driving-record consequences of a suspension imposed under the same infirm framework; and (c) exposure to any future APS proceeding conducted under a framework that does not comply with due-process requirements. Each is a continuing present adverse effect within the meaning of *Villa v. Maricopa County*, 865 F.3d 1224, 1229 (9th Cir. 2017).

91. Defendant Candelaria's conduct was undertaken with reckless indifference to Plaintiff's clearly established constitutional rights. Presented with a formal Detention Certificate, binding California Supreme Court precedent in *Mercer*, objective dashcam evidence contradicting the DS-367 in material respects, and three published California Court of Appeal decisions articulating the due-process requirements governing the very framework in which she was operating, Defendant Candelaria elected to ignore each of them and issue a decision that ratified constitutionally infirm police conduct and operated within a framework that crossed from neutral fact development into advocacy. That conduct warrants punitive damages under *Smith v. Wade*, 461 U.S. 30, 56 (1983).

**COUNT I**

**42 U.S.C. § 1983 -- Fourteenth Amendment --**
**Procedural Due Process -- Denial of an Impartial Adjudicator**
**(Against Defendant Candelaria in Her Individual Capacity)**

92. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

93. The Due Process Clause of the Fourteenth Amendment requires that state adjudicative deprivations of protected property interests be conducted by a neutral decisionmaker free from structural bias. *Withrow v. Larkin*, 421 U.S. 35, 46-47 (1975); *In re Murchison*, 349 U.S. 133, 136 (1955) ("[N]o man can be a judge in his own case."); *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868, 883-84 (2009). "A fair trial in a fair tribunal is a basic requirement of due process." *Murchison*, 349 U.S. at 136.

94. Plaintiff's Class A Commercial Driver's License is a constitutionally protected property interest. *Bell v. Burson*, 402 U.S. 535, 539 (1971); *Mackey v. Montrym*, 443 U.S. 1, 10-11 (1979). California Vehicle Code section 13353 and its implementing regulations create a system of state-conferred entitlement to that property interest, subject to deprivation only after adequate process. *Cleveland Bd. of Educ. v. Loudermill*, 470 U.S. 532, 538-41 (1985).

95. Defendant Candelaria conducted Plaintiff's January 24, 2025 APS hearing within the DMV's hearing framework -- a framework in which the same officer both develops the evidentiary record and renders the final decision. The hearing officer's combined role is set forth in the DMV's own written Notice of Hearing Appointment (Form DS 2304, Rev. 05/2023) served on Plaintiff: "The Hearing Officer will develop the facts and render a final decision on your

matter." Whether that framework operates consistently with due process depends on whether the hearing officer conducts neutral fact development or crosses the line into advocacy. Candelaria's conduct at Plaintiff's hearing -- gathering and marshaling evidence on the DMV's behalf, offering the DMV's exhibits, ruling on Plaintiff's objections, and ultimately deciding the merits without engaging with the material contrary evidence Plaintiff placed in the record -- crossed that line.

96. Candelaria's conduct at Plaintiff's proceeding replicates the pattern that three separate California Court of Appeal decisions have held violates due process:

*California DUI Lawyers Ass'n v. DMV*, 77 Cal.App.5th 517 (2022);

*Knudsen v. DMV*, 101 Cal.App.5th 186 (2024);

*Clarke v. Gordon*, 104 Cal.App.5th 1267 (2024).

97. Defendant Candelaria was on notice of those decisions at the time of Plaintiff's hearing. Plaintiff's December 9, 2024 Notice of Response cited the constitutional framework governing the hearing officer's role. Candelaria proceeded to conduct the hearing in a manner that crossed from neutral fact development into advocacy notwithstanding that notice.

98. Absolute immunity is functional, not titular. To the extent Candelaria's conduct crossed from adjudication into partisan evidence development, that conduct is not immunized merely because it occurred in connection with a hearing. The precise functional character of her conduct must be evaluated from the hearing record. *Butz v. Economou*, 438 U.S. 478, 511-12 (1978); *Forrester v. White*, 484 U.S. 219, 227-30 (1988); *Swift v. California*, 384 F.3d 1184, 1191-92 (9th Cir. 2004).

99. As a direct and proximate result of Defendant Candelaria's violation of the Due

Process Clause through her conduct that crossed from neutral fact development into advocacy within the hearing framework, Plaintiff has suffered the damages alleged in paragraphs 79-87 and 89-91 above.

**COUNT II**

**42 U.S.C. § 1983 -- Fourteenth Amendment --**
**Procedural Due Process -- Denial of a Fair Hearing**
**(Against Defendant Candelaria in Her Individual Capacity)**

100. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

101. Although due process does not require a formal judicial opinion, the decisionmaker should state the reasons for the determination and indicate the evidence relied upon. *Goldberg v. Kelly*, 397 U.S. 254, 271 (1970). Procedures that eliminate meaningful factual inquiry violate due process where the private interest is substantial. *Mathews v. Eldridge*, 424 U.S. 319, 344-45 (1976).

102. Defendant Candelaria denied Plaintiff a fair hearing in at least the following respects, which collectively establish that the proceeding failed to meaningfully consider the administrative record:

(a) Candelaria's written decision does not address the November 5, 2024 Penal Code section 851.6 Detention Certificate that Plaintiff placed before her in his December 9, 2024 Notice of Response and again at the January 24, 2025 hearing.

(b) Candelaria's written decision does not address or analyze California Supreme Court

authority in *Mercer v. DMV*, 53 Cal.3d 753 (1991), on the observed-volitional-movement requirement for a lawful DUI arrest, notwithstanding Plaintiff's timely written invocation of that authority.

(c) Candelaria's written decision did not address or analyze Penal Code sections 849(c) and 849.5 -- which provide that, following a section 849(b)(1) release and Detention Certificate, the event is not deemed an arrest -- notwithstanding Plaintiff's timely invocation of those provisions as bearing on the lawful-arrest hearing issue.

(d) Candelaria ratified the sworn DS-367 executed by Officer Meza-Gonzalez notwithstanding objective dashcam evidence contradicting it in at least four material respects (see paragraph 29, above), without addressing the contradictions or explaining the basis for crediting the DS-367 over the objective recording.

(e) Candelaria issued a conclusory decision that stated, in direct contradiction of the record, that "no evidence was presented to the contrary," when in fact contrary evidence had been presented in writing and at the hearing.

(f) Candelaria failed to identify or apply any of the three California Court of Appeal decisions Plaintiff had cited regarding the constitutional framework in which she was operating.

103. The omissions listed in paragraph 102 collectively support the inference that the proceeding failed to provide the reasoned, evidence-based inquiry the Due Process Clause requires. *Goldberg*, 397 U.S. at 271. This is not a case where the driver received a fair hearing and lost on the merits; this is a case where the driver was denied a hearing that engaged with the dispositive evidence and controlling authority he placed before the adjudicator.

104. To the extent Defendant asserts that certain of these failures represent debatable

exercises of adjudicative judgment, the answer is that at the pleading stage the question is not conclusive proof but well-pleaded plausibility. *Ashcroft v. Iqbal*, 556 U.S. 662, 678-79 (2009). The concrete allegations of Candelaria's silence on the Detention Certificate, *Mercer*, and sections 849(c) and 849.5, together with her written statement that "no evidence was presented to the contrary," are non-conclusory factual allegations directly supporting the denial-of-fair-hearing theory.

105. As a direct and proximate result of the denial of a fair hearing, Plaintiff has suffered the damages alleged in paragraphs 79-87 and 89-91 above.

**COUNT III**

**42 U.S.C. § 1983; 28 U.S.C. §§ 2201, 2202 -- Declaratory Relief**

**(Against Defendant Gordon in His Official Capacity -- Ex parte Young)**

106. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

107. An actual, justiciable controversy exists between Plaintiff and Defendant Gordon, in his official capacity as Director of the California DMV, concerning: (a) the constitutional adequacy of the DMV's APS hearing framework and the hearing-officer role described in the DMV's Notice of Hearing Appointment (Form DS 2304); (b) the DMV's continuing enforcement of the collateral consequences of the February 11, 2025 decision -- principally the three-year SR-22 financial-responsibility requirement and the DMV-record consequences of the suspension; and (c) whether the DMV's enforcement of a suspension decision that did not meaningfully consider material evidence bearing on the statutory lawful-arrest prerequisite -- including a Penal Code section 849(b)(1) release and section 851.6 Detention Certificate -- violates Plaintiff's federal procedural-due-process rights.

108. Pursuant to 28 U.S.C. sections 2201 and 2202, Plaintiff seeks a declaratory judgment against Defendant Gordon that:

(a) The DMV's APS hearing framework, as applied to Plaintiff in APS Case No. 34739340 and as generally implemented under Form DS 2304 (Rev. 05/2023), violates the Due Process Clause of the Fourteenth Amendment;

(b) The continued enforcement of the collateral consequences flowing from the February 11, 2025 decision -- including the $125.00 reissue fee, the three-year SR-22 financial-responsibility requirement, and the DMV-record consequences of the suspension -- based on a decision issued in a constitutionally infirm proceeding, violates Plaintiff's Fourteenth Amendment rights;

(c) The continued enforcement of an APS decision allegedly reached without meaningful consideration of material evidence bearing on the statutory lawful-arrest prerequisite violates Plaintiff's federal procedural-due-process rights;

(d) The DMV's application of an effectively irrebuttable presumption of official regularity to sworn officer statements, notwithstanding objective contradicting evidence in the administrative record, violates procedural due process.

109. Declaratory relief against Defendant Gordon is sought in his official capacity under the *Ex parte Young* doctrine. The DMV's continuing enforcement of the collateral consequences of the February 11, 2025 decision -- including the SR-22 encumbrance and DMV-record consequences -- is an ongoing violation of federal law that authorizes prospective declaratory relief notwithstanding the Eleventh Amendment. *Verizon Md. Inc. v. Public Serv. Comm'n*, 535 U.S. 635, 645-46 (2002); *Ex parte Young*, 209 U.S. 123, 157-59 (1908).

110. Plaintiff has standing to seek declaratory relief. The SR-22 encumbrance imposed under Defendant Candelaria's decision remains in force and extends through approximately May 2029 (see paragraph 54, above); the reissue conditions imposed by that decision remain in force; the commercial-driving-record consequences of the suspension remain in force; and Plaintiff remains subject to any future APS proceeding conducted under the same framework. Each is a "continuing, present adverse effect" within the meaning of *Villa v. Maricopa County*, 865 F.3d 1224, 1229 (9th Cir. 2017), quoting *O'Shea v. Littleton*, 414 U.S. 488, 496 (1974).

111. To the extent Defendant argues that Plaintiff's harms do not establish continuing, present adverse effects because the twelve-month suspension period has run, that argument fails. The SR-22 mandate imposed by Defendant Candelaria's decision requires three years of maintained proof of financial responsibility; because Plaintiff's SR-22 filing became effective May 18, 2026, the maintenance period extends through approximately May 2029. See paragraphs 82-86, above. That mandate is not equivalent to the general financial-responsibility requirement of Cal. Veh. Code section 16020(a) (see paragraph 83, above); it is a specific punitive encumbrance flowing directly from the challenged administrative action, and it is redressable by prospective relief.

**COUNT IV**

**42 U.S.C. § 1983 -- Injunctive Relief**

**(Against Defendant Gordon in His Official Capacity -- Ex parte Young)**

112. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

113. The continued enforcement of the collateral consequences flowing from the February

11, 2025 decision -- principally the SR-22 financial-responsibility requirement and DMV-record consequences -- and the continued operation of the DMV's APS hearing framework in a manner that does not comply with due-process requirements, constitute an ongoing violation of federal law for which *Ex parte Young* authorizes prospective injunctive relief against Defendant Gordon in his official capacity.

114. Plaintiff seeks the following injunctive relief against Defendant Gordon:

(a) An order vacating the February 11, 2025 Notification of Findings and Decision in APS Case No. 34739340 (Candelaria) as issued in a constitutionally infirm proceeding;

(b) An order vacating the associated $125.00 reissue fee under Cal. Veh. Code sections 14904 and 14906;

(c) An order vacating the three-year SR-22 financial-responsibility requirement imposed under Cal. Veh. Code section 16430, and directing the DMV to notify the insurance industry that Plaintiff is no longer subject to the SR-22 filing;

(d) An order directing the DMV to expunge from Plaintiff's driving record all notations arising from the vacated decision and suspension;

(e) An order requiring that any future APS hearing involving Plaintiff be conducted by a neutral decisionmaker who does not act as an advocate for the Department.

115. Plaintiff has no adequate remedy at law for the ongoing constitutional violations. Damages against Defendant Candelaria in her individual capacity cannot vacate the suspension record, cannot lift the SR-22 encumbrance, cannot compel compliance with due-process requirements, and cannot prevent the same conduct from being applied to Plaintiff in any future

APS proceeding.

116. The balance of equities and the public interest favor injunctive relief. The State has no legitimate interest in maintaining a suspension imposed in a constitutionally infirm proceeding, where the arresting agency has issued a section 851.6 certificate stating "insufficient grounds for making a criminal complaint" and the prosecuting authority has declined to file any accusatory pleading. The public interest is served by ensuring that state administrative agencies comply with basic due-process requirements when adjudicating the deprivation of citizens' commercial licenses and livelihoods.

117. To the extent Defendant argues that a state-court petition for writ of administrative mandate under Cal. Code Civ. Proc. section 1094.5 would provide an adequate alternative remedy, that argument fails: (a) section 1983 provides an independent federal cause of action that is not defeated by the availability of state-law remedies (*Patsy v. Board of Regents*, 457 U.S. 496 (1982)); (b) the state-court mandate remedy would not lift the SR-22 encumbrance flowing from the DMV's operative administrative decision without vacatur of that decision; and (c) the state-court mandate remedy would not ensure that any future APS hearing involving Plaintiff is conducted by a neutral decisionmaker.

**QUASI-JUDICIAL ABSOLUTE IMMUNITY IS UNAVAILABLE**

118. To the extent Defendant Candelaria asserts quasi-judicial absolute immunity, the defense fails on the functional analysis the Supreme Court and Ninth Circuit require. Absolute immunity is functional, not titular: it protects adjudicative acts performed within proceedings that include adequate procedural safeguards, not all conduct that happens to occur in connection with a hearing. *Butz v. Economou*, 438 U.S. 478, 511-12 (1978); *Forrester v. White*, 484 U.S. 219, 227-30 (1988); *Cleavinger v. Saxner*, 474 U.S. 193, 202 (1985); *Swift v. California*, 384 F.3d 1184, 1191-92 (9th Cir. 2004). Plaintiff alleges that Candelaria's conduct crossed from

adjudication into partisan evidence development. The precise functional character of that conduct must be evaluated from the hearing record and cannot be resolved against Plaintiff at the pleading stage. *Iqbal*, 556 U.S. at 678-79; see also *Knudsen*, 101 Cal.App.5th at 207 (analysis "will necessarily depend on the unique facts of each hearing").

119. Any qualified immunity defense that Defendant Candelaria may separately assert also fails. The constitutional rights alleged to have been violated -- to a neutral adjudicator and to reasoned engagement with material evidence in the administrative record -- were clearly established well before Plaintiff's January 24, 2025 hearing. *Withrow v. Larkin*, 421 U.S. 35 (1975); *In re Murchison*, 349 U.S. 133 (1955); *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009); *Goldberg v. Kelly*, 397 U.S. 254 (1970); *Mathews v. Eldridge*, 424 U.S. 319 (1976).

120. In the alternative, and even if the specific factual application had not been clearly established, an officer can be on notice that her conduct violates the Constitution where the violation is obvious. *Hope v. Pelzer*, 536 U.S. 730, 741 (2002). Ignoring a formal Detention Certificate, ratifying a demonstrably false sworn statement, and operating in a manner that three separate appellate decisions have found constitutionally deficient is not a novel gray area. It falls at the core of the due-process requirements the Fourteenth Amendment was adopted to enforce.

**THE ELEVENTH AMENDMENT DOES NOT BAR THE EX PARTE YOUNG CLAIMS AGAINST DEFENDANT GORDON**

121. To the extent Defendant Gordon asserts Eleventh Amendment immunity, the defense fails. *Ex parte Young*, 209 U.S. 123 (1908), authorizes suit against state officers in their official capacity for prospective declaratory and injunctive relief to remedy ongoing violations of federal law. *Verizon Md. Inc. v. Public Serv. Comm'n*, 535 U.S. 635, 645-46 (2002); *Idaho v. Coeur d'Alene Tribe*, 521 U.S. 261, 276-77 (1997).

122. Plaintiff pleads ongoing violations of federal law traceable to Defendant Gordon: (a) the continuing enforcement of the collateral consequences of a decision issued in a constitutionally infirm proceeding -- principally the SR-22 encumbrance and DMV-record consequences; (b) the continuing operation of the reissue conditions imposed under that decision; (c) the continuing operation of the DMV's APS hearing framework in a manner that does not comply with due-process requirements, of which Gordon has been personally on notice since *Clarke v. Gordon* (2024) and cumulatively on notice since *California DUI Lawyers Ass'n* (2022).

123. Plaintiff has Article III standing to seek prospective relief. To have standing, a plaintiff "must allege either 'continuing, present adverse effects' due to [his] exposure to [d]efendants' past illegal conduct, or a sufficient likelihood that [he] will again be wronged in a similar way." *Villa v. Maricopa County*, 865 F.3d 1224, 1229 (9th Cir. 2017), quoting *O'Shea v. Littleton*, 414 U.S. 488, 496 (1974), and *City of Los Angeles v. Lyons*, 461 U.S. 95, 111 (1983). Plaintiff pleads both.

124. Continuing, present adverse effects. Candelaria's decision requires three years of maintained proof of financial responsibility. Because Plaintiff's SR-22 filing became effective May 18, 2026, the maintenance period extends through approximately May 2029. Plaintiff currently maintains an active SR-22 policy solely because of that mandate; he currently pays premiums on it; and the mandate has materially restricted the pool of carriers willing to insure him and has prevented him from obtaining standard owners-coverage insurance on terms comparable to those available to drivers not subject to the mandate. The reissue conditions, the commercial-driving-record consequences, and the professional stigma flowing from the suspension are continuing. Each is redressable by the prospective relief requested. See paragraphs 82-87, above.

125. The SR-22 is not a mere generic insurance obligation moot in light of Cal. Veh. Code section 16020(a). Section 16020 requires proof of financial responsibility for owners and drivers

as a general matter; the SR-22 under section 16430 is a specific, high-risk, punitive filing imposed only as a consequence of specified adverse administrative actions (see paragraph 83, above). Vacating the suspension decision removes the SR-22; leaving it in place preserves it. The distinction is not theoretical -- Plaintiff pays for it every year.

## PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGWA NFORBI respectfully prays for judgment against Defendants, and each of them, as follows:

**A. Against Defendant Candelaria, in Her Individual Capacity**

1. Compensatory damages in an amount to be proven at trial, including but not limited to: direct suspension-period lost wages exceeding $121,000 for the period February 20, 2025 through February 19, 2026, calculated from Plaintiff's contemporaneous rate of $33.35 regular and $50.03 premium; post-suspension consequential earning impairment caused by the continuing DMV-record consequences of the suspension; out-of-pocket expenses (including the $125.00 reissue fee, SR-22 premiums, alternative-transportation costs, and administrative expenses); reputational injury; and damages for emotional distress, humiliation, and mental anguish;

2. Punitive damages in an amount sufficient to punish and deter, pursuant to *Smith v. Wade*, 461 U.S. 30 (1983);

**B. Against Defendant Gordon, in His Official Capacity**

3. A declaratory judgment under 28 U.S.C. sections 2201 and 2202 in the terms set forth in paragraph 108 above;

4. Injunctive relief in the terms set forth in paragraph 114 above, including vacatur of Defendant Candelaria's February 11, 2025 decision, vacatur of the $125.00 reissue fee, vacatur of the three-year SR-22 requirement, expungement of associated notations from Plaintiff's driving record, and an order requiring that any future APS hearing involving Plaintiff be conducted by a neutral decisionmaker who does not act as an advocate for the Department;

**C. As to All Defendants**

5. Taxable costs as permitted by law, and reasonable attorney's fees under 42 U.S.C. section 1988 to the extent recoverable;

6. Pre-judgment and post-judgment interest to the fullest extent permitted by law; and

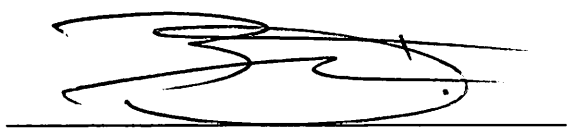
7. Such other and further relief as this Court deems just and proper.

**DEMAND FOR JURY TRIAL**

Pursuant to Rule 38 of the Federal Rules of Civil Procedure and the Seventh Amendment to the United States Constitution, Plaintiff hereby demands a trial by jury on all issues so triable, including all claims for damages against Defendant Candelaria in her individual capacity.

Dated: August 11, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Pro Per

...n, CA 95204





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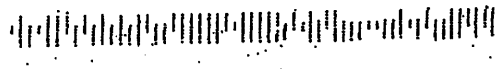
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AUG 11, 2026

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U.S. District Court
Northern District of California, Oakland Division
Office of the Clerk
Ronald V. Dellums Federal Building & United States Courthouse
1301 Clay Street, Suite 400 S
Oakland, CA 94612



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CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA